

Court No. - 21

Case :- WRIT - C No. - 9473 of 2023

Petitioner :- Mohd. Kasim

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions and clarify whether any order of final assessment has been passed or not.

Put up as fresh on 3.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.3.2023

SL

Court No. - 21

Case :- WRIT - C No. - 9473 of 2023

Petitioner :- Mohd. Kasim

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged a notification issued on 27.06.2006 and has prayed for a direction to the respondents to afford personal hearing to the petitioner in terms of Clause 8.1 of the U.P. Electricity Supply Code, 2005.

Sri N.K. Tiwari, learned counsel for the respondent Electricity Department states that the petitioner has deposited the entire amount and the offence of theft has been compounded. The Electricity Department has already sent a communication to the concerned Authority for dropping the criminal proceedings. The communication made in this regard dated 28.03.2023 has been placed before us for perusal and a copy thereof has also been handed over to learned counsel for the petitioner. The affidavit filed by the petitioner while making deposits has also been placed before us and wherein the petitioner has undertaken to withdraw the instant petition.

Having regard to the above facts, counsel for the petitioner prays for withdrawal of the petition.

Accordingly, the petition is dismissed as withdrawn.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.4.2023

SL